

Asrar Ahmad Malik v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 August 2022 · WRIT - C No. 21154 of 2022 · **Writ disposed; liberty to object under Para 6.8; coercive action stayed.**

HEADNOTE

A writ seeking quashing of a recovery citation and a correct electricity bill was disposed of without a merits determination. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a short stay of coercive action on the demand.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 2 April 2022 issued against him by the U.P. Power Corporation Ltd. authorities and sought a mandamus requiring the Executive Engineer to decide his representation dated 12 May 2022 and to furnish a correct electricity bill. Counsel for the licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would then be decided in accordance with law within a time-bound period. The High Court heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation — alternate remedy with stay

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Vidyut Vitran Khand, George Town, Prayagraj, within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against a recovery citation was disposed of by relegating the consumer to an objection under Para 6.8, without deciding the demand on merits. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Executive Engineer was directed to decide a Para 6.8 objection, if filed within four weeks, in accordance with law after hearing; coercive action on the demand was stayed for eight weeks or until disposal, whichever earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 02.04.2022 AND CORRECTNESS OF THE ELECTRICITY BILL

Court expressly declined to express any opinion on the merits. ¶ 1